

Digital Privacy Protection Act

An Act to Establish Data Protection Standards and Consumer Privacy Rights

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled:

SEC. 1. SHORT TITLE AND FINDINGS

This Act may be cited as the 'Digital Privacy Protection Act of 2025'. Congress finds that:

(1) Personal data has become a valuable asset in the digital economy; (2) Consumers are often unaware of how their data is collected, used, and shared; (3) The current fragmented regulatory landscape creates confusion and inconsistency; (4) There is a strong need for uniform privacy standards across all states; (5) Data breaches have increased exponentially in recent years.

SEC. 2. DEFINITIONS

As used in this Act:

(1) 'Personal data' means information that identifies or reasonably could identify an individual; (2) 'Data controller' means any entity that determines the purposes of data processing; (3) 'Data processor' means any entity that processes personal data on behalf of the controller; (4) 'Consumer' means a natural person whose personal data is collected; (5) 'Data breach' means unauthorized access or disclosure of personal data.

SEC. 3. CONSUMER RIGHTS

(a) Right to Know: Consumers shall have the right to know what personal data is collected about them. (b) Right to Access: Consumers may request and obtain a copy of their personal data. (c) Right to Portability: Consumers may obtain their data in a portable format. (d) Right to Deletion: Consumers may request deletion of their personal data in most contexts. (e) Right to Opt-Out: Consumers may opt out of sale or sharing of their data. (f) Right to Non-Discrimination: Businesses shall not discriminate against consumers for exercising privacy rights.

SEC. 4. BUSINESS OBLIGATIONS

(a) Data minimization: Businesses shall only collect data that is necessary for specified purposes. (b) Security requirements: All personal data must be protected with appropriate technical and organizational measures. (c) Breach notification: Entities must notify consumers without unreasonable delay of breaches. (d) Privacy policies: Clear, concise privacy policies must be maintained and be easily accessible. (e) Data protection assessments: High-risk processing requires impact assessments. (f) Appointment of data protection officer: Large entities processing substantial amounts of data shall designate a DPO.

SEC. 5. ENFORCEMENT AND PENALTIES

(a) The Federal Trade Commission shall enforce this Act; (b) Violations may result in civil penalties up to \$5,000 per violation or 2% of gross revenue, whichever is greater; (c) Private right of action for

consumers: Consumers may sue for violations resulting in damages; (d) The FTC may seek injunctive relief and consumer restitution.

SEC. 6. EFFECTIVE DATE

This Act shall take effect eighteen months after enactment.